

Terms and Conditions

Effective date	[EFFECTIVE DATE]
Last updated	[EFFECTIVE DATE]
Applies to	Tactura for iPadOS, version 1.0 and later
Publisher	[DEVELOPER LEGAL NAME]

These Terms and Conditions (the “**Terms**”) form a binding agreement between you (“**you**”) and [DEVELOPER LEGAL NAME] (“**we**”, “**us**”, “**our**”) governing your use of **Tactura**, an iPadOS application that converts a two-dimensional image into a 2.5D relief model suitable for 3D printing (the “**App**”).

By downloading, installing or using the App you accept these Terms. If you do not accept them, do not use the App and delete it from your device.

What you should know before reading further

- The App runs its artificial-intelligence model **entirely on your iPad**. We never receive your images, and we have no ability to access, moderate or recover your work.
- **You keep every right in the artwork you convert and in the models you export**. We claim no licence in them.
- The relief output is an **estimate produced by a machine-learning model**. It is not a measurement. Inspect it before you print it.
- These Terms supplement, and do not replace, Apple’s Licensed Application End User Licence Agreement (Section 14).

1 Eligibility

You must be at least 13 years old — or the minimum age of digital consent in your country of residence, which is up to 16 in parts of the European Union — to accept these Terms on your own behalf. If you are below that age you may use the App only with the involvement of a parent or legal guardian who accepts these Terms for you. If you are accepting these Terms on behalf of an organisation, you confirm you are authorised to bind it.

You may not use the App if you are barred from doing so under the laws of your country of residence or of the country from which you use it, or if you are subject to the restrictions in Section 14.7.

2 Licence

Subject to these Terms, we grant you a limited, personal, non-exclusive, non-transferable, non-sublicensable and revocable licence to install and use one copy of the App on any Apple-

branded device that you own or control, as permitted by the App Store Usage Rules in force from time to time. Where those Usage Rules allow Family Sharing or volume purchasing, this licence extends accordingly.

This is a licence, not a sale. All rights not expressly granted are reserved by us and by our licensors.

2.1 Scope of permitted use

The App may be used for personal, educational, academic, research and commercial purposes, subject to these Terms and any rights that apply to Your Content.

2.2 What you may not do

You may not, and may not permit anyone else to:

- copy, redistribute, rent, lease, lend, sell or sublicense the App, or make it available over a network for others to use;
- extract, decompile, disassemble, reverse-engineer or otherwise attempt to derive the source code of the App, or extract the bundled machine-learning model weights for use outside the App, except to the extent that applicable law expressly permits this notwithstanding a contractual prohibition;
- remove, obscure or alter any copyright, trademark or other proprietary notice;
- circumvent any technical limitation, or use the App in a manner that breaches the App Store Usage Rules;
- use the App to process content that you do not have the right to process, or that is unlawful in your jurisdiction; or
- use the App in the design or operation of any system where a failure could lead to death, personal injury, or severe physical or environmental damage.

3 Your content and your intellectual property

Your Content means every image you photograph or import into the App, and every relief model, height map, mesh or file the App produces from it.

- **You own Your Content.** As between you and us, you retain all right, title and interest in it, including all intellectual-property rights.
- **We claim no licence in Your Content.** We do not take a licence to use, reproduce, display, adapt, publish or distribute it, and we could not exercise one if we did: Your Content never leaves your device, so we never receive it.
- **We do not train on Your Content.** It is not, and will not be, used to train, fine-tune, evaluate or improve any machine-learning model.
- **You are responsible for the rights in what you convert.** You warrant that you own Your Content or otherwise have every permission needed to use it with the App. Converting someone else's drawing, photograph, character or design may infringe their copyright, trademark,

design right, personality right or moral rights, and the fact that the App transformed it into a relief does not change that. You bear that responsibility, not us.

- **We cannot recover it.** Because we hold no copy, we cannot restore Your Content if you delete a project, delete the App, or lose or reset your device. Export anything you care about.

4 On-device processing, and what that means for support

The App performs all image analysis, depth estimation, mesh construction and file export locally on your iPad, using a machine-learning model compiled into the application. There is no server component and the App contains no networking code.

Two consequences follow, and both cut in your favour and against you:

- **In your favour:** your work is private by construction, the App functions with no internet connection, and no outage, subscription lapse or service shutdown on our part can take away the functionality you have installed.
- **Against you:** we have no visibility into problems you experience. We cannot see your projects, reproduce a failure remotely, retrieve a lost file or diagnose a crash from our side. Support therefore depends on the description you give us.

5 Device requirements and performance

The App requires an iPad running the version of iPadOS stated on its App Store listing, and requires free storage for the App, its approximately 50 MB embedded depth model, and the projects you create.

Conversion is computationally intensive. Speed, thermal behaviour and battery consumption vary significantly with the iPad model, the size of the image and the settings you choose; devices with an Apple Neural Engine are markedly faster. We do not warrant any particular conversion time. Sustained conversion may cause the device to become warm and may cause iPadOS to reduce performance to manage temperature, which is normal system behaviour and not a defect in the App.

6 AI-generated output — accuracy and limitations

The App uses a monocular depth-estimation model to infer three-dimensional structure from a single flat image. This is, by its nature, an *estimation* problem: the true depth of a scene cannot be determined from one picture, and the model produces a plausible interpretation rather than a measurement.

You should therefore expect, and accept, that:

- output may be inaccurate, distorted, inconsistent between runs, or simply unlike what you expected;
- results depend heavily on input quality — lighting, contrast, focus, occlusion, reflective or

transparent subjects, and unusual compositions all degrade the estimate;

- dimensions, proportions, thicknesses and relative depths in an exported model are **not to scale and are not metrologically valid**; and
- the App is a creative and educational tool. It must not be relied upon for engineering, architectural, medical, forensic, navigational, structural or any other purpose where dimensional accuracy affects safety, health, legal rights or property.

6.1 3D printing

Exported files are provided for you to inspect and use at your own discretion. Before printing, review the model in slicing software and satisfy yourself that it is suitable. We are not responsible for wasted filament or resin, failed prints, damage to a printer, or any injury or damage arising from a printed object. 3D printers involve high temperatures, moving parts and, in the case of resin systems, hazardous chemicals — follow your printer manufacturer’s safety instructions, which govern in every case.

7 Data, storage and backup

Projects are stored inside the App’s private storage on your device. Deleting a project deletes its files; deleting the App deletes all of them. Large intermediate files are deliberately excluded from device backups because the App can regenerate them.

You are solely responsible for backing up anything you wish to keep. The most reliable way to do so is to export the finished model to a location you control. How the App handles information is described in full in our Privacy Policy, which forms part of these Terms.

8 Updates and availability

We may issue updates that fix defects, improve output quality, adapt the App to new versions of iPadOS or new hardware, or add and remove features. Updates are delivered through the App Store and are subject to your device settings. Some updates may be required for the App to keep functioning on a newer iPadOS release.

We may cease publishing or supporting the App at any time. Because the App runs entirely on your device, a copy you have already installed will keep working for as long as your device and its operating system allow — we cannot switch it off remotely, and we make no commitment that it will remain compatible with future versions of iPadOS.

9 Disclaimer of warranties

To the maximum extent permitted by applicable law, the App is provided “**as is**” and “**as available**”, without warranty of any kind. We disclaim all warranties, express, implied or statutory, including any implied warranties of merchantability, satisfactory quality, fitness for a particular purpose, accuracy, and non-infringement.

We do not warrant that the App will be uninterrupted or error-free, that defects will be corrected, that it will meet your requirements, or that any output will be accurate, printable or fit for any purpose.

Consumer rights are not affected. Some jurisdictions do not allow the exclusion of implied warranties or of certain statutory guarantees. Nothing in these Terms excludes, restricts or modifies any guarantee, right or remedy that you have under mandatory consumer-protection law that cannot lawfully be excluded — including rights under EU and UK consumer law, the Australian Consumer Law, and Indonesian consumer-protection law. Where such law applies, the disclaimers and limitations in Sections 9 and 10 apply only to the extent that law permits.

10 Limitation of liability

To the maximum extent permitted by applicable law, and subject always to the box in Section 9:

- we will not be liable for any indirect, incidental, special, consequential, exemplary or punitive damages, or for any loss of profits, revenue, goodwill, data, content or opportunity, however caused and on any theory of liability, even if we have been advised of the possibility of such damages;
- our total aggregate liability arising out of or relating to the App and these Terms will not exceed the greater of the amount you actually paid for the App in the twelve months preceding the event giving rise to the claim, or **[CURRENCY AND AMOUNT]**.

Nothing in these Terms limits our liability for death or personal injury caused by our negligence, for fraud or fraudulent misrepresentation, or for any other liability that cannot lawfully be limited.

11 Indemnity

You agree to indemnify and hold us harmless from any claim, demand, loss or expense (including reasonable legal fees) brought by a third party and arising out of your breach of these Terms, your misuse of the App, or your processing of content in which you did not hold the necessary rights. This clause does not apply where you are acting as a consumer and applicable law does not permit it.

12 Third-party components and attribution

The App incorporates the following third-party software, redistributed under the licences shown. Each executes locally within the App and none transmits data.

Component	Purpose	Licence
Depth Anything V2 Small	Monocular depth estimation	Apache License 2.0
DINOv2 (encoder backbone)	Feature extraction within the depth model	Apache License 2.0
OpenCV	Image processing	Apache License 2.0
Mesh simplification routine	Reducing exported mesh complexity	MIT License
Apple Core ML, AVFoundation, PhotoKit, SwiftUI	Model execution, capture, import, interface	Apple SDK licence terms

Full licence texts are reproduced in the App under **Settings** → **Acknowledgements** **[CONFIRM LOCATION]** and are available from us on request. Where a component's licence conflicts with these Terms in respect of that component, the component's licence prevails for that component.

Depth Anything V2 is the work of its respective authors and is used under the Apache License 2.0; its inclusion does not imply their endorsement of the App.

13 Termination

These Terms apply until terminated. They terminate automatically if you breach them, and you may terminate them at any time by deleting the App from your devices. On termination the licence in Section 2 ends and you must stop using the App. Sections 3, 9, 10, 11, 12 and 15 survive termination.

14 Terms required by Apple

You acknowledge and agree the following, which apply because the App is distributed through the App Store. These Terms are concluded between you and us only, and not with Apple Inc. ("Apple"). Where these Terms are less protective of you than Apple's Licensed Application End User Licence Agreement, that agreement's terms prevail.

14.1 Responsibility. We, not Apple, are solely responsible for the App and its content.

14.2 Maintenance and support. Apple has no obligation whatsoever to furnish any maintenance or support services for the App. Support is provided by us at the contact address in Section 16.

14.3 Warranty. In the event of any failure of the App to conform to any applicable warranty, you may notify Apple, and Apple will refund the purchase price (if any) for the App to you. To the maximum extent permitted by applicable law, Apple has no other warranty obligation whatsoever with respect to the App, and any other claims, losses, liabilities, damages, costs or expenses attributable to any failure to conform to any warranty are our sole responsibility.

14.4 Product claims. We, not Apple, are responsible for addressing any claims by you or any third party relating to the App or your possession and use of it, including product-liability claims, any claim that the App fails to conform to any applicable legal or regulatory require-

ment, and claims arising under consumer-protection, privacy or similar legislation.

14.5 Intellectual-property claims. In the event of any third-party claim that the App or your possession and use of it infringes that third party's intellectual-property rights, we, not Apple, will be solely responsible for the investigation, defence, settlement and discharge of that claim.

14.6 Third-party beneficiary. Apple and Apple's subsidiaries are third-party beneficiaries of these Terms, and upon your acceptance of them Apple will have the right (and will be deemed to have accepted the right) to enforce these Terms against you as a third-party beneficiary.

14.7 Legal compliance. You represent and warrant that you are not located in a country subject to a U.S. Government embargo or designated by the U.S. Government as a "terrorist supporting" country, and that you are not listed on any U.S. Government list of prohibited or restricted parties.

15 Governing law and disputes

These Terms are governed by the laws of **[GOVERNING JURISDICTION]**, without regard to its conflict-of-laws rules, and the courts of that jurisdiction have non-exclusive jurisdiction over any dispute.

This does not deprive you of local protection. If you are a consumer, you also have the benefit of any mandatory provisions of the law of the country in which you reside, and you may bring proceedings in the courts of that country. Nothing in this Section limits a consumer's right under EU or UK law to rely on the mandatory rules of their home jurisdiction. Consumers resident in the European Union may also use the European Commission's Online Dispute Resolution platform.

We encourage you to contact us first; most disputes are resolved faster by email than by litigation.

16 General, and how to reach us

Changes. We may amend these Terms to reflect changes to the App or to the law. The revised version will carry a new "Last updated" date and will be made available with the App's App Store listing. Continued use after a change takes effect constitutes acceptance. Changes that materially reduce your rights will be brought to your attention in the App.

Severability. If any provision is held unenforceable, it will be modified to the minimum extent necessary or severed, and the remainder will continue in full force.

No waiver. A failure to enforce any provision is not a waiver of it.

Assignment. You may not assign these Terms. We may assign them in connection with a merger, acquisition or sale of assets, on notice.

Entire agreement. These Terms, together with the Privacy Policy and Apple's Licensed Application End User Licence Agreement, constitute the entire agreement between you and us regarding the App.

Language. These Terms are published in English. **[IF YOU PUBLISH A TRANSLATION, STATE WHICH VERSION PREVAILS — OTHERWISE DELETE THIS SENTENCE]**

Publisher [DEVELOPER LEGAL NAME]

Email [CONTACT EMAIL]

Postal address [POSTAL ADDRESS]

Support [SUPPORT URL]